

Praveen Kumar Sahu v. State of U.P. — electricity-bill writ dismissed for Clause 6.5 remedy

Allahabad High Court · Division Bench · 11 November 2021 · Writ-C No. 27127 of 2021 · Writ-C No. 27127 of 2021 · **Writ dismissed; relegated to Clause 6.5 engineer.**

HEADNOTE

A writ challenging an electricity bill dated 16 July 2021 was dismissed because Clause 6.5 of the U.P. Electricity Supply Code, 2005 is the forum: the consumer must approach the engineer concerned. The High Court did not examine the bill on merits.

FACTUAL SUMMARY

Praveen Kumar Sahu invoked the writ jurisdiction of the Allahabad High Court against the State of Uttar Pradesh and three others over an electricity bill dated 16 July 2021. Counsel for the respondents entered appearance. The petition was not heard on the correctness of the demand or on any connected supply-code controversy beyond the existence of a statutory forum. The Division Bench of Sunita Agarwal and Krishan Pahal, JJ. treated the grievance as one for the engineer concerned under the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-alternate-remedy

HOLDING

A consumer who challenges an electricity bill in writ proceedings must first invoke the jurisdiction of the engineer concerned under Clause 6.5 of the U.P. Electricity Supply Code, 2005; the writ is dismissed on the ground of that alternative remedy. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the 16.7.2021 electricity bill was dismissed because Clause 6.5 is the alternative remedy. ¶ 1

clause-6.5-representation-executive-engineer The Court directed the petitioner to approach the engineer concerned under Clause 6.5 rather than pursue the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL DATED 16.7.2021

The Court did not examine the bill on merits. ¶ 1